

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY-----X
THERESA HANKERSON,
Plaintiff,

v.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
ROTHENBERG, Shield # 73648, 61ST Precinct,
NEW YORK CITY POLICE OFFICER
MARTINEZ, PSA 1,
NEW YORK CITY POLICE DETECTIVE
SCOT KASHINSKY, 61st Precinct,
NEW YORK CITY POLICE DETECTIVE
CHRISTOPHER BURTON, 61st Precinct,
NEW YORK CITY POLICE OFFICER JANE DOE,
61ST Precinct,Defendant(s).
-----XSUMMONS

Index No.: _____

Date Index No. Purchased: _____

To the Person(s) named as Defendants Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the Complaint of the Plaintiff(s) herein and serve a copy of your answer on the Plaintiff(s) at the address indicated below within 20 days after the Service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to Answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: _____

Signature_____
Print nameAddress and Phone Number

() - _____

Defendants' Address: _____

Venue: Plaintiff(s) designate(s) _____ County as the place of trial. The basis of the Designation is (check one)

____ Plaintiff(s) reside in _____ County.

____ Defendant(s) reside in _____ County

__Other (*describe*) _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

-----X

THERESA HANKERSON,
Plaintiff,

-against-

**VERIFIED
COMPLAINT**THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
ROTHENBERG, Shield # 73648, 61st Precinct,
NEW YORK CITY POLICE OFFICER
MARTINEZ, PSA 1,
NEW YORK CITY POLICE DETECTIVE
SCOT KASHINSKY, 61st Precinct,
NEW YORK CITY POLICE DETECTIVE
CHRISTOPHER BURTON, 61st Precinct,
NEW YORK CITY POLICE OFFICER JANE DOE,
61st Precinct,

Defendants.

-----X

Plaintiff, THERESA HANKERSON, by her Attorney, VICTOR M. BROWN, ESQ., as and for a
verified complaint alleges respectfully and states as follows:

FOR A FIRST CAUSE OF ACTION**NATURE OF ACTION**

1. This is a Civil Rights, False Arrest, Intentional Assault, and Negligence and/or Negligent supervision action for compensatory damages proximately resulting from Plaintiff having been falsely arrested and having excessive force used against her by the above captioned Defendant Officers on July 10, 2018, November 19, 2018 and April 17, 2019 in the vicinity of 3645 Nostrand Avenue in Brooklyn, New York and the 61st Precinct in Brooklyn, New York.

NOTICE OF CLAIM

2. That on September 28, 2018, February 6, 2019 and July 2, 2019, Plaintiff THERESA HANKERSON, prior to the bringing of the within causes of action, and within ninety days after

the dates of the alleged incidents, filed Notices of Claim which was duly served upon the Defendant(s).

3. That more than thirty days have elapsed since the service of two of the three aforementioned said Notices of Claim and notice of intent to sue upon the Defendant(s).
4. That the Defendant(s) and its Comptroller have failed, neglected to pay, settle, compromise or adjust the claim(s) of the Plaintiff.
5. That this action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
6. That the Plaintiff has duly complied with all the conditions precedent to the commencement of this action, including submission to an inquiry concerning the justness of the claims on April 15, 2019 and May 2, 2019, pursuant to General Municipal Law 50.

THE PARTIES

7. That at all times mentioned, the Plaintiff, THERESA HANKERSON, is a United States citizen, who was, and still is a resident of the State of New York, Kings County.
8. That at all times mentioned, Defendant CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department, which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department, and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT.
9. That upon information and belief, at all times relevant, Defendant CITY OF NEW YORK, employed Police Officers, Corrections Officers and medical personnel and others hereinafter mentioned in this complaint.
10. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to

carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers

11. Defendant(s), NEW YORK CITY POLICE OFFICERS ROTHENBERG, Shield # 73648, MARTINEZ, KASHINSKY, BURTON and DOE, upon information and belief, from PSA-1 and the 61stth Precinct of THE NEW YORK CITY POLICE DEPARTMENT, were and are, at all times relevant, Officers, employees and agents of Defendant CITY OF NEW YORK. Defendant Officers ROTHENBERG, MARTINEZ, KASHINSKY, BURTON and DOE are sued individually and in their official capacities. At all times relevant, Defendant Officers ROTHENBERG, MARTINEZ, KASHINSKY, BURTON and DOE were acting under color of State Law and in the scope of their duties and functions as agents, servant and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant Officers ROTHENBERG, MARTINEZ, KASHINSKY, BURTON and DOE received training in making arrests, the utilization of force in effecting an arrest, and legal training from Defendant CITY OF NEW YORK and THE NEW YORK CITY POLICE and were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in them as Police Officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and incidental to their lawful duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

FIRST INCIDENT

12. That on July 10, 2018, at approximately 1:30 p.m., in the vicinity of 3645 Nostrand Avenue, Kings County New York, Plaintiff THERESA HANKERSON was at her residence when members of the NEW YORK CITY POLICE DEPARTMENT, named Defendant Detectives SCOT KASHINSKY and CHRISTOPHER BURTON, arrived at the location. The Defendant Detectives knocked on Plaintiff's door and the Plaintiff observed them accompanied by the Plaintiff's neighbor. The

Plaintiff allowed the Defendant Officers to enter her residence. After speaking with Defendant Detectives KASHINSKY and BURTON for approximately thirty minutes Defendant Detective KASHINSKY grabbed the Plaintiff by her right arm, then placed his left arm around the Plaintiff's neck in a choke hold. Defendant KASHINSKY then physically grabbed Plaintiff's ribs, then Plaintiff's buttocks. Defendant Detective BURTON, who was initially observing the aforementioned, then gave Defendant KASHINSKY a set of handcuffs which Defendant KASHINSKY used to rear handcuff the Plaintiff. The Defendant Detectives then took the Plaintiff out of her apartment, put her in a police vehicle and transported Plaintiff to the 61st Precinct. In the rear parking lot of the 61st Precinct, Defendant Detective KASHINSKY physically threw the Plaintiff, who was still rear-cuffed, out of the police car onto the ground causing physical injury to the Plaintiff's back, buttocks and hands. The Plaintiff was then picked up and thrown into the trunk of another car, causing additional injury to her back and ribs which required medical treatment at a local area hospital, and now necessitate Plaintiff's use of a cane to walk. After the Plaintiff was brought back to the Precinct from the hospital Plaintiff was subjected to another physical search of her person by Defendant NEW YORK CITY POLICE OFFICER JANE DOE, who proceeded to physically search the Plaintiff, going into the Plaintiff's bra and lifting up the Plaintiff's skirt in front of male members of the 61st Precinct, after the Plaintiff had been returned from the hospital.. The Plaintiff was held in custody of THE NEW YORK CITY POLICE DEPARTMENT and the Defendant DETECTIVES KASHINSKY and BURTON for over twenty four hours before being eventually being released. The Plaintiff was subsequently prosecuted by THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE, which subsequently dismissed all the criminal charges against the Plaintiff.

SECOND INCIDENT

13. On November 19, 2018 at approximately 8:30 a.m. the Plaintiff was at her residence located at 3645 Nostrand Avenue in Kings County going into the elevator when the Plaintiff observed her neighbor and said hello to her neighbor's grandchildren. The neighbor responded by calling the

Plaintiff an expletive and telling the Plaintiff that she "was always causing trouble." The neighbor then began pushing the Plaintiff, who was using a cane to ambulate, in her back. The neighbor then called 911 and two uniformed members of THE NEW YORK CITY POLICE DEPARTMENT arrived at the location. Named Defendant Officers ROTHENBERG and MARTINEZ arrived shortly thereafter and Defendant ROTHENBERG grabbed the Plaintiff by her left arm, causing lacerations and bruising to the Plaintiff's left arm. The Plaintiff was rear-cuffed by Defendant ROTHENBERG, who proceeded to twist the Plaintiff's arms and torso, causing Plaintiff extreme pain and aggravating her pre-existing injuries, and causing Plaintiff's daughter to ask the named Defendant Officers what they were doing to her mother. Defendant ROTHENBERG applied handcuffs to the Plaintiff causing extreme pain to the Plaintiff's wrists, and proceeded to slam the Plaintiff into a glass wall, telling Plaintiff to "shut the F*** up." Defendant ROTHENBERG then told the Plaintiff she was being arrested for "resisting arrest", and proceeded to violently push the Plaintiff into a police car. The Plaintiff was subsequently transported to the 61st Precinct, where Defendant ROTHENBERG proceeded to cause the Plaintiff's head to strike against a metal railing causing injury to the left side of Plaintiff's face and head, while keeping his elbow pressed into Plaintiff's back. Defendant ROTHENBERG took the Plaintiff's turban off her head and threw it down on the floor. Members of the NEW YORK CITY POLICE DEPARTMENT took the Plaintiff's three stone bracelets and diamond earrings, which were never returned to the Plaintiff. The Plaintiff requested a female police officer, which request was ignored by Defendants ROTHENBERG and MARTINEZ. The Plaintiff was subsequently transported to a local area hospital where she was treated for injuries to her back, shoulder, arm and torso, head and face. Plaintiff now suffers from depression, sleep deprivation and slipped discs in her lower back as a result of the conduct of Defendants ROTHENBERG and MARTINEZ.

THIRD INCIDENT

14. On April 19, 2019 the Plaintiff was outside of her residence located at 3645 Nostrand Avenue in Kings County at approximately 8:30 waiting for a car service to take her to a physical therapy

appointment when members of THE NEW YORK CITY POLICE DEPARTMENT, including named Defendant Officers ROTHENBERG and MARTINEZ arrived at the location. The Police had been summoned to the location by the maintenance man of Plaintiff's building, who claimed the Plaintiff had struck him with her burlap pocket book. Plaintiff proceeded flag down Defendant NEW YORK CITY POLICE OFFICER GUZMAN, who stopped at the location. Plaintiff observed Defendant Officers MARTINEZ and ROTHENBERG, seated in a blue and while Police van. The Plaintiff then observed Defendant Officers ROTHENBERG and MARTINEZ exit their vehicle and proceed to go speak with the maintenance man, while the Plaintiff explained to Defendant OFFICER GUZMAN that she had bumped into the maintenance man by mistake as she went in the elevator, since Plaintiff had two bags on her shoulder and was using a cane to ambulate. Two Housing Authority case workers also came over to where the Plaintiff was speaking with Defendant Officer GUZMAN. The Plaintiff then observed Defendant Officer GUZMAN speaking with Defendant Officers ROTHENBERG and MARTINEZ. The Plaintiff then observed Defendant GUZMAN proceed to walk over to the Plaintiff and tell her to put her hands behind her back. A female member of THE NEW YORK CITY POLICE DEPARTMENT proceeded to grab the Plaintiff by her left arm, while another police officer grabbed the Plaintiff's cane. Defendant Officer GUZMAN then proceeded to put the Plaintiff in a chokehold then proceeded to handcuff the Plaintiff. While the Plaintiff was handcuffed Defendant ROTHENBERG proceeded to twist Plaintiff's left finger causing it to fracture. The Plaintiff was subsequently searched by named Defendant ROTHENBERG and other members of the NEW YORK CITY POLICE DEPARTMENT, treated by EMS at the precinct then transported to a local area hospital where she was diagnosed with a fractured finger, along with slipped discs in her back which were caused by the earlier incidents involving the named Defendant Officers. As a result of the aforementioned the Plaintiff now has to have surgery on her left ring finger.

15. That as a result of the false arrests, searches and subsequent prosecutions of the Plaintiff, the Plaintiff was unlawfully detained in custody for approximately twenty four hours after each

incident, forced to receive medical treatment for her injuries, and required to defend herself against the false charges levied upon her by the named Defendant Officers.

16. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

17. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Sixteen (16) with the same force and effect as if set forth here at length.
18. That during the effectuation of the arrests by named Defendants, NEW YORK CITY POLICE OFFICERS KASHINSKY, ROTHENBERG, Shield Number 73648, and MARTINEZ, utilized excessive force against the Plaintiff, causing Plaintiff to suffer a fractured left ring finger, and causing Plaintiff to suffer physical injury to her back, head, face, arms, wrists, impairment and extreme physical pain and discomfort, and requiring medical treatment at a local area hospitals and extensive physical therapy.
19. That named Defendant CITY OF NEW YORK, is responsible for the training and supervision of the named Defendant Officers, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.
20. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

21. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Twenty (20) with the same force and effect as if set forth here at length.
22. That at the time and place aforesaid, named Defendant Officers KASHINSKY, ROTHENBERG, MARTINEZ and DOE willfully, wantonly, maliciously and intentionally assaulted the Plaintiff causing the Plaintiff to suffer the injuries previously alleged.
23. At the time of such assault, Defendant Officers KASHINSKY and ROTHENBERG were employees and or servants of said Defendant CITY OF NEW YORK, and were acting as agents of

Defendant CITY OF NEW YORK, in doing the acts complained of herein and within the scope of their authority.

24. Solely by reason of the foregoing negligent training and supervision of the named Defendant Officers by Defendant CITY OF NEW YORK, the Plaintiff became sick, sore, lame and disabled, and suffered great physical and mental pain requiring medical treatment, and impairment.
25. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

26. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Five (25) with the same force and effect as if set forth here at length.
27. Solely by reason of the foregoing negligent training, supervision of Defendant CITY OF NEW YORK of the named Defendant Officers, resulting in Plaintiff's false arrests and malicious prosecutions, Plaintiff's civil rights, pursuant to United States and New York State Constitutions, were violated by the named Defendant Officers and Defendant CITY OF NEW YORK, causing the Plaintiff to suffer great mental distress, and injuring her reputation and character.
28. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant(s) in the amount of One Million Dollars (1,000,000.00) together with the costs and disbursements of this action.

/S/

VICTOR M. BROWN, ESQ.
11 Park Place, Suite 1100
New York, NY 10007
(212) 227-7373
Attorney for Plaintiff

Dated:
July 2, 2019